

Committee: Security Council

Topic: Re-Evaluating the Threshold of Intervention: State Sovereignty, Humanitarian Aid Blockades, and the Ethics of Coercive Force

Head Chair: Natalia Schärer Milošević

Co-Chair: Hollansa Cardoso



Introduction

The tension between the principle of state sovereignty and the necessity to protect civilians from mass atrocity crimes and deliberate deprivation remains one of the most relevant challenges before the Security Council. When governments or parties in conflicts systematically obstruct humanitarian assistance, through sieges, borderclosures, or the weaponisation of aid, the Council is repeatedly called upon to determine whether, and under conditions, should coercive measures, including force or not, may be authorised.

This debate forces the body to revisit the threshold for intervention under Chapter VII of the charter, the level of responsibility to Protect, and the practical limits of non-consensual action when vetoes and geopolitical interests restrict a collective response.

Delegates are invited to examine how existing legal frameworks have been applied, or left unapplied in recent crises and to consider whether clearer criteria or institutional adjustments are required.

Key Words

State Sovereignty - The foundational principle of international law, affirmed in Article 2(1) and 2(7) of the UN Charter, under which each state exercises exclusive authority over its territory and internal affairs, free from external interference, subject only to the limitations accepted under the Charter itself.

Responsibility to Protect (R2P) - The political commitment endorsed by Member States whereby every state bears the primary responsibility to protect its population from genocide, war crimes, ethnic cleansing and crimes against humanity; should a state fail in that duty, the international community, acting through the Security Council, may take collective action, including under Chapter VII.

Humanitarian Aid Blockade - The deliberate restriction or denial of access by humanitarian organisations to civilian populations in need, whether by physical siege, bureaucratic obstruction, or the withholding of consent for cross-border or cross-line deliveries, often amounting to a method of warfare prohibited under international humanitarian law.

General Overview

The charter balances the prohibition of the threat of, or use of force against the territorial integrity or political independence of any state, with the primary responsibility of the council to maintain international peace and security.

Under Article 2(7) of the UN charter, the UN is not generally permitted to interfere with the internal affairs of a sovereign country, but this is waived if a situation threatens international peace and security and emergency enforcement action is needed.

In practice, the council has considered large scale human suffering that threatens regional stability to be within its competence, even if the approximate cause is internal. This practice further developed after the failures in Rwanda and Srebrenica in the 1990s, culminating in the report of the international commission intervention and state sovereignty in 2001 and the subsequent endorsement of R2P in paragraphs 138 and 139 of the 2005 World Summit outcome document.

R2P reframed the debate from a contested “right to interfere” to a shared responsibility. Its three pillars placed the primary duty on the territorial state, called upon the international community to assist states in meeting that duty, and, as a residual measure, authorized timely and decisive collective action through the security council when peaceful means are inadequate and national authorities are failing to respect the Charter. Military force is an exceptional tool of last resort, only to be authorized when other measures have been exhausted or would clearly be

insufficient, and only under the authority of the Council. Practice has since confirmed both the political weight of the norm and its practical vulnerability. Resolution 1674 (2006) officially put R2P language on the council's agenda for civilian protection; Resolution 1973(2011) authorized “all necessary measures” to protect civilians in Libya, the first direct invocation of the policy for military action. However, the following controversy over the scope of that mandate, hardened the stance of several permanent members and made subsequent efforts to use the same framework more difficult.

Humanitarian aid blockades present a distinct yet related challenge. International humanitarian law prohibits the starvation of civilians as a method of warfare and requires parties to allow and facilitate *rapid* and *unintended* passage of relief cargo. When consent is withheld or systematically obstructed, the council has authorized occasional alternative procedures. Resolution 2165 (2014) established a monitoring mechanism and permitted United Nations agencies to deliver assistance across Syrian borders without the consent of Syrian authorities, an exceptional step that was repeatedly changed and ultimately blocked by a series of successive vetoes.

Similar patterns of obstructions have been documented in Yemen, Tigray, Myanmar and Gaza, often accompanied by the destruction of objects vital to civilian survival. Resolution 2417(2018) by consensus condemned the use of starvation as a method of warfare and the council's willingness to consider targeted measures against those responsible for obstructing aid. Nevertheless, implementation has remained uneven, highlighting the persistent gap between normative, diplomatic promises and operational will.

The ethics of coercive force, thus turns on three interdependent questions: The severity and internal nature of the conflict and/or harm, the existence of less intrusive measures, and the ability of the council itself to act in a coherent fashion when permanent members hold different views of sovereignty and the proper limits of intervention.

Delegates must weigh the risk that overly rigid thresholds could leave populations unprotected against danger, while broad interpretations could undermine the charter's core structure and authorize unilateral action outside of council authority.

Major Parties Involved

Permanent Members of the Security Council (P5) - The five permanent members retain the veto and therefore determine the limits of any course of response. Their stances have historically differed. France and the United Kingdom have generally favored interpretations of the R2P and the protection of civilians. The United States has supported intervention in selected cases while remaining cautious about criteria that might contain its own freedom of action. China and the Russian Federation consistently emphasize the importance of state sovereignty, non-interference, and the requirement of host state consent for most forms of assistance and force, viewing expensive applications of R2P as potential tools for regime change.

Affected State and Regional Organisations- Governments facing internal conflict or external pressure frequently invoke sovereignty to resist non-consensual measures. Regional bodies such as the African Union, the League of Arab states and the Organization of Islamic Cooperation have at times endorsed stronger council action and at other times, promoted restraint, reflecting both normative commitments and geopolitical alignments.

Humanitarian Actors - United Nations agencies, the international committee of the Red Cross, and independent non-governmental organizations utilize their access to negotiations and document obstruction. Their reporting often supplies the factual basis for council involvement, yet they remain dependent on political environments that only member states can create or close.

Timeline of Relevant Events

Year	Event
1945	The adoption of the UN charter, establishment and prohibition on the use of force and the chapter VII enforcement powers of the security council
1994-1995	Genocide in Rwanda and the fall of Srebrenica expose the consequences of council inaction in the face of mass atrocity
2001	International commission on intervention and state sovereignty publishes <i>the responsibility to protect</i> , reframing sovereignty as responsibility
2005	World summit outcome document endorses R2P in paragraphs 138 and 139
2006	Security council resolution 1674 reaffirms R2P in the context of the protection of civilians in armed conflict
2011	Resolution 1973 authorizes “All necessary measures” to protect civilians in Libya, the subsequent controversy over mandate expansion intensifies the debate on R2P
2014	Resolution 2165 authorizes cross border humanitarian assistance in Syria without the consent of the Syrian authorities
2018	Resolution 2417 condemns the use of starvation of civilians as a method of warfare and the unlawful denial of humanitarian access

Year	Event
2019-2023	Successive Russian, and occasionally Chinese, vetoes's progressively restrict and eventually terminate the Syrian cross border mechanism
2023-present	Intensified obstruction of humanitarian access in multiple Regions, including Gaza, Sudan and Myanmar, repeatedly test the council's ability to enforce existing norms

Relevant Documents

<https://www.un.org/en/about-us/un-charter/chapter-7>

Sets out the Security Council's authority to determine the existence of any threat to the peace and to decide upon measures not involving the use of armed force, or, if necessary, action by sea, land or air.

<https://um.dk/media/dxvlsjji/world-summit-outcome-doc-2005-1.pdf>

The authoritative political endorsement of the Responsibility to Protect by HEads of State and Government.

<https://digitallibrary.un.org/record/573969?ln=fr&v=pdf>

First formal incorporation of R2P language into a resolution on the protection of civilians.

[https://docs.un.org/en/S/RES/1973%20\(2011\)](https://docs.un.org/en/S/RES/1973%20(2011))

Authorisation of all necessary measures to protect civilians in Libya, widely regarded as the first operational application of R2P for military action.

[https://docs.un.org/en/S/RES/2165\(2014\)](https://docs.un.org/en/S/RES/2165(2014))

Authorisation of United Nations cross border humanitarian operations into Syria without host state consent.

[https://docs.un.org/en/S/res/2417\(2018\)](https://docs.un.org/en/S/res/2417(2018))

Unanimous condemnation of starvation as a method of warfare and of the unlawful denial of humanitarian access.

Possible Solutions

Delegates may wish to consider the followingPossible solutions, recognizing that any operative outcomes must command the necessary support within the council:

1. Clarification of criteria for the authorization of non consensual humanitarian access, building on the existing resolution 2165 while addressing the vulnerability of time limited mandates to successive vetoes
2. Strengthen monitoring and reporting mechanisms under resolution 2417, including regular briefings on the obstruction of aid and the deliberate creation of famine conditions, as well as the readiness to impose targeted sanctions on individuals and entities responsible.
3. Exploration of voluntary restraints on the use of the veto in situations involving credible evidence of mass atrocity crimes or systematic starvation, without prejudice to the charter rights of permanent members.
4. Enhanced coordination with regional organizations under Chapter VIII to develop complementary early warning and rapid response capacities that can add, rather than avoid, Security Council Action.

Works Cited

References

- International Commission on Intervention and State Sovereignty. 2001. *The Responsibility to Protect: Report of the International Commission on Intervention and State Sovereignty*. Ottawa: International Development Research Centre.
<https://www.idrc.ca/en/book/responsibility-protect-report-international-commission-intervention-and-state-sovereignty>.
- United Nations. 1945. *Charter of the United Nations*. San Francisco: United Nations.
<https://www.un.org/en/about-us/un-charter>.
- United Nations General Assembly. 2005. *2005 World Summit Outcome*. A/RES/60/1. New York: United Nations. <https://undocs.org/A/RES/60/1>.
- United Nations Security Council. 2006. *Resolution 1674 (2006)*. S/RES/1674 (2006). New York: United Nations. [https://undocs.org/S/RES/1674\(2006\)](https://undocs.org/S/RES/1674(2006)).
- United Nations Security Council. 2011. *Resolution 1973 (2011)*. S/RES/1973 (2011). New York: United Nations. [https://undocs.org/S/RES/1973\(2011\)](https://undocs.org/S/RES/1973(2011)).

United Nations Security Council. 2014. *Resolution 2165 (2014)*. S/RES/2165 (2014). New York: United Nations. [https://undocs.org/S/RES/2165\(2014\)](https://undocs.org/S/RES/2165(2014)).

United Nations Security Council. 2018. *Resolution 2417 (2018)*. S/RES/2417 (2018). New York: United Nations. [https://undocs.org/S/RES/2417\(2018\)](https://undocs.org/S/RES/2417(2018)).

Global Centre for the Responsibility to Protect. n.d. “*What is R2P?*” New York: Global Centre for the Responsibility to Protect. <https://www.globalr2p.org/what-is-r2p/>.